

Authority for Personal Data
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autoriteitpersoonsgegevens.nl
The Minister of Health, Welfare and Sport
P.O. Box 20350
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Date

October 4, 2022

Our reference

z2022-04349

Contact person

Your reference

3397994-1032659-DMO

Subject

Amendment to the Wmo 2015 and Implementation Decree Wmo 2015

Dear Mr. Kuipers,

The Authority for Personal Data (AP) has been consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the proposal to amend the Social Support Act 2015 in connection with the introduction of a suitable contribution for domestic assistance¹ (Act on Suitable Personal Contribution for Domestic Assistance) (hereinafter: the draft) as well as regarding the proposal to amend the Implementation Decree Wmo 2015 concerning the establishment of rules regarding, among other things, the amount and method of calculating the personal contribution for domestic assistance.²

The AP has one comment on the draft and advises that this should be taken into account.

Scope of the draft

The draft introduces a new task for the CAK³; the determination and collection of the personal contribution for domestic assistance for the municipality.⁴ This personal contribution will be income and asset-dependent. To determine the amount of the personal contribution, the CAK will therefore have to conduct an assessment of the income and assets of the client and must establish to which household a client belongs (for example, single, multi-person, pension-eligible).

For this new task of the CAK, it is necessary to process personal data. The CAK is dependent on information from various authorities. The explanatory memorandum of the draft lists the personal data required to determine the personal contribution.⁵

For the basis for processing this personal data, reference is made to the existing Article 5.1.3 of the Wmo.⁶ Article 5.1.3, first paragraph, Wmo - which is not being amended - essentially states, as far as relevant, that the CAK is authorized to process personal data that are necessary for the determination and collection as referred to in Article 2.1.4b, first paragraph, Wmo. Since Article 5.1.3, first paragraph, Wmo specifically refers to Article 2.1.4b, first paragraph, Wmo, the CAK's authority to process personal data is 'automatically' also applicable to its new task of determining the contribution for domestic assistance, which will be included in the to-be-amended Article 2.1.4b, first paragraph, Wmo.

Advice

The explanatory memorandum accompanying the draft specifically names the personal data needed for the determination and collection of the personal contribution for domestic assistance. In the explanatory memorandum, it is stated in general terms that the processing of all this data is necessary, without specifying this further for each piece of data.

The AP advises to pay more attention to the necessity for the processing of each specific piece of data and to motivate in Chapter 4 of the explanatory memorandum (as much as possible) why these data need to be processed for each piece of data. For example, it is not explained why the income data of 18, 19, and 20-year-olds from the UWV are needed, or why the authentic income is required in addition to the taxable income.

5 In Chapter 4 of the explanatory memorandum (which discusses the relationship between the draft and the GDPR), it indicates for each authority (BRP, UWV, SVB, and the Tax Authority) which (personal) data are specifically needed.

6 The explanatory memorandum submitted to the AP incorrectly refers to Article 5.2.3 of the (existing) Wmo as the (national) legal basis for the processing of personal data. It should be Article 5.1.3.

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Publication of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to know the expected date of publication as soon as it is known.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman